

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-03

ONE BANANA NORTH AMERICA CORP.,
COMPLAINANT

v.

HAPAG-LLOYD AG and
HAPAG-LLOYD (AMERICA) LLC,
RESPONDENTS.

**JOINT MOTION FOR STAY OF DEADLINES
PENDING SETTLEMENT**

Pursuant to 46 C.F.R. Section 502.141 and the Chief Administrative Law Judge's June 2, 2022 Revised Scheduling Order in this action, Complainant, One Banana North America Corp., ("OBNA") and Respondents Hapag-Lloyd AG and Hapag-Lloyd (America) LLC ("Hapag-Lloyd") (each a "Party" and, collectively, the "Parties"), by their respective undersigned counsel, jointly write to inform the Chief Administrative Law Judge that the Parties have reached an agreement in principle to settle this action, and currently are working with their respective counsel to prepare the necessary documentation, which the Parties anticipate moving for leave to file confidentially for the Chief Administrative Law Judge's consideration and approval under 46 C.F.R. Section 502.72(a)(3).

The efforts by the Parties and their respective counsel in recent weeks to reach this pending global settlement, involving other legal claims in multiple jurisdictions, have drawn attention and resources away from discovery-related tasks. In light of that factor, as well as the Parties' mutual desire to avoid unnecessary effort and expense in connection with this action, the Parties

respectfully request that the Chief Administrative Law Judge suspend the current deadlines in this action until October 14, 2022. The Parties jointly stipulate to the extension requested herein under 46 C.F.R. Section 502.141(l), but for the sake of clarity and certainty also seek the Chief Administrative Law Judge's approval under that section and 46 C.F.R. Section 502.147(a)(3).

The Parties currently anticipate filing joint motions for confidential treatment and approval of their pending settlement on or before October 14, 2022.

Dated: September 1, 2022

Respectfully submitted,

FISHERBROYLES, LLP

COZEN O'CONNOR

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*Counsel for Respondents Hapag-Lloyd A.G. and
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CERTIFICATE OF SERVICE

I certify that on September 1, 2022, a true and correct copy of the foregoing document was served by email on all counsel of record in accordance with 46 CFR Part 502 and the Commission's Order of January 26, 2022, as follows:

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